XII. OCCUPATIONAL HEALTH AND SAFETY

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Republic Act No. 11058 OCCUPATIONAL HEALTH AND SAFETY

- An Act Strengthening Compliance with Occupational Safety and Health Standards and Providing Penalties for Violations Thereof

- Section 2. Coverage. - This Act shall apply to all establishments, projects, sites, including Philippine Economic Zone Authority (PEZA) establishments, and all other places where work is being undertaken in all other places where work is being undertaken in all branches of economic activity, except in public sector.

- The Secretary of Labor and Employment shall issue the number of employees, and nature of operations, and the risk or hazard involved.

Chapter III - Duties and Rights of Employers, Workers, and Other Persons

(a) Every employer, contractor or subcontractor, if any, and any person who manages, controls or supervises the work being undertaken shall:

(1) Furnish the workers a place of employment free from hazardous conditions that are causing or are likely to cause death, illness or physical harm to the workers;

(2) Give complete job safety instructions or orientation to all the workers especially to those entering the job for the first time, including those relating to familiarization with their work environment;

(3) Inform the workers of the hazards associated with their work health risks involved ot to which they are exposed to, preventive measures to eliminate or minimize the risks, and steps to be taken in cases of emergency;

(4) Use only approved devices and equipment for the workplace;

(5) Comply with OSH standards including training medical examination and where necessary, provision of protective and safety devices such as personal protective equipment (PPE) and machine guards;

(6) Allow workers and their safety and health representatives to participate actively in the process of organizing, planning, implementing and evaluating the safety and health program to improve safety and health in the workplace; and

(7) Provide, where necessary, for measures to deal with emergencies and accidents including first-aid arrangements.

(b) Every worker shall participate in ensuring compliance with OSH standards in the workplace. The worker shall make proper use of all safeguards and safety devices furnished for the worker's protection and that of others, and shall observe instructions to prevent accidents or imminent danger situation in workplace. The worker shall observe the prescribed steps to be taken in cases of emergency. The worker shall report to the supervisor any work hazard that may be discovered in the workplace.

(c) It shall be the duty of any person, including the builder or contractor who visits, builds, renovates or installs devices or conducts business in any establishment or workplace, to comply with the provisions of this Act and all other regulations issued by the Secretary of Labor and Employment.

(d) Whenever two(2) or more undertakings are engaged in activities simultaneously in one (1) workplace, it shall be the duty of all engaged to collaborate in the application of OSH standards and regulations. THERE IS 1 SLIDE MISSING HERE

Section 8. Workers' Right to Personal Protective Equipment (PPE). - Every employer, contractor or subcontractor, if any, shall provide his workers, free of charge, protective equipment for their eyes, face, hands and feet, and free, and lifeline, safety belt or harness, gas or dust respirators or masks, protective shields whenever necessary by reason of the hazardous work process or environment, chemical, radiological, mechanical and other irritants or hazards capable of causing injury or impairment in the function of any part of the body through absorption, inhalation or physical contact. The cost of the PPE shall be part of the safety and health program which is a separate pay item pursuant to Section 20 of this Act.

All PPE shall be of the appropriate type as tested and approved by the DOLE based on its standards. The usage of PPE in all establishments, projects, sites and all other places where work is being undertaken shall be based on the evaluation and recommendation of the safety officer.

Section 9. Safety Signage and Devices. - All establishments, projects, sites and all other places where work is being undertaken shall have safety signage and devices to warn the workers and the public of the hazards in the workplace. Safety signage and devices shall be posted in prominent positions and strategic locations in a language understandable to all, and in accordance with the standard set by the DOLE.

Section 10. Safety in the Use of Equipment. In relation to the use of equipment, the employer, contractor or subcontractor, if any, must comply with the DOLE requirements in the different phases of the company or project operation including the transport to and from the establishment, project, site or place where work is being undertaken. Section 11. Occupational Safety and Health Information. - Workers in all establishments, projects, sites and all other places where work is being undertaken shall be provided adequate and suitable information by the employer, contractor or subcontractor, if any, on safety and health hazards, and the appropriate measures, including the probable location of workers, for the prevention, control and protection against those hazards.

Section 14. Safety Officer. - To ensure that a safety and health program is duly followed and enforced. Section 15. Occupational Health Personnel and Facilities. - Covered workplaces shall have qualified occupational health personnel such as physicians, nurses, certified first-aiders, and dentists duly complemented with the required medical supplies, equipment and facilities. The number of health personnel, equipment and facilities. The number of health

personnel, equipment and facilities, and the amount of supplies shall be proportionate to the total number of workers and the risk of hazard involved, the ideal ratio of which shall be prescribed by the DOLE.

Section 16. Safety and Health Training. - · (a) All safety and health personnel shall undergo the mandatory training on basic occupational safety and health for safety officers as prescribed by DOLE. · (b) All workers shall undergo the mandatory eight (8) hours safety and health seminar as required by the DOLE which shall include a portion on joint employer-employee orientation. · (c) All personnel engaged in the operation, erection and dismantling of equipment and scaffolds, structural erections, excavations, blasting operations, demolition, confined spaces hazardous chemicals, welding, and flame cutting shall undergo specialized instruction and training on the said activities.

Chapter V - Joint and Solidary Liability

- Section 21. Employers' Responsibility and Liability. - The employer, project owner, general contractor, contractor or subcontractor, if any, and any person who manages, controls or supervises the work being undertaken shall be jointly and solidarily liable for compliance with this Act.

Section 27. Incentives to Employers

- There shall be an established package of incentives under such riles and regulations as may be promulgated by the DOLE to qualified employers to recognize their efforts toward ensuring compliance with OSH and general labor standards such as OSH training packages, additional protective equipment, technical guidance, recognition awards and other similar incentives.

Section 28. Prohibited Acts.

- (a) Willful failure or refusal of an employer, contractor or subcontractor to comply with the required OSH standards or with a compliance order issued by the Secretary of Labor and Employment or by the Secretary's authorized representative shall make such employer, contractor or subcontractor liable for an administrative fine not exceeding One hundred thousand pesos (₱100,000.00) per day until the violation is corrected, counted from the date the employer or contractor is notified of the violation or the date the compliance order is duly served on the employer.

- (b) An employer, contractor or subcontractor who willfully fails or refuses to comply with the required OSH standards or with a duly issued compliance order, and engages in any of the following acts to aid, conceal or facilitate such noncompliance shall be liable for a maximum of One hundred thousand pesos (₱100,000.00) administrative fine separate from the daily fine imposed above:

    1. Repeated obstruction, delay or refusal to provide the Secretary of Labor and Employment or any of its authorized representatives access to the covered workplace or refusal to provide or allow access to relevant records and documents or obstruct the conduct of investigation of any fact necessary in determining compliance with OSH standards;

    2. Misrepresentation in relation to adherence to OSH standards, knowing such statement, report or record submitted to the DOLE to be false in any material aspect;

    3. Making retaliatory measures such as termination of employment, refusal to pay, reducing wages and benefits or in any manner discriminates against any workers who

has given information relative to the inspection being conducted.

Eddie Garcia Law (RA No. 11996)

Terms of Employment

- Before work commences, an agreement or employment contract must be executed between the worker and the employer or principal, in a language or dialect understood by both parties. The contract must include job position and status, job description, period of employment, compensation details, authorized deductions, hours of work, and grievance mechanism.

Non-Discrimination Against Workers

- No agreement or employment contract shall impose discrimination against a worker engaged in contracts or projects with other production companies, unless exclusivity is explicitly stated in the contract. Furthermore, no individual shall engage in any act that favors or discriminates based on race, color, descent, national or ethnic origin, or religion, if such actions result in the denial, limitation, or unequal exercise of any human right or fundamental freedom. Provided, however, that any exclusivity requirement must be reasonable and in accordance with law.

Working Conditions and Standards

- The law stipulates that the hours of work should be based on the terms and conditions in the agreement or employment contract. The work day is generally eight (8) hours but can be extended to fourteen (14) hours. The total number of work hours should not exceed sixty (60) hours in a week There should be a rest of period of at least ten (10) hours between work days.

- Workers should receive at least the minimum wage applicable to the region where they were hired. Furthermore, all workers should be covered by SSS, Pag-Ibig, and Philhealth.

- Employers or principals are required to provide basic necessities such as potable drinking water, clean and accessible toilets, private dressing rooms, safe and comfortable holding areas, free accommodation for out-of-town projects, and safety officers and dedicated vehicles for emergencies. Employers and principals must comply with occupational safety and health standards.

Duties and Responsibilities of the Employer or Principal

- Employers and principals are responsible for ensuring occupational safety and health in every production by adhering to all relevant laws, rules, and regulations. They must promote a safe working environment by maintaining proper working conditions and providing necessary first aid and medical supplies at all workplaces.

- Additionally, only workers with appropriate training should be engaged, and they must be informed of potential hazards. Set locations should undergo thorough safety and health assessments, with any environmental or structural hazards promptly addressed. Employers and principals must also ensure the proper use of safeguards and personal protective equipment.

- Clear safety information, such as emergency contacts and the location of safety equipment, should be readily available. Lastly, a brief safety meeting should be conducted at the start of each shooting day to discuss health and safety protocols with all workers.

Movie and Television Industry Tripartite Council

The law likewise created the Movie and Television Industry Tripartite Council. The Council is comprised of government representatives and representatives from the employers or principals and workers in the movie and television industry.

The Council was created to encourage continuous communication and collaboration between the government, employers, and workers in the industry. In this way, the Council acts as an ongoing platform for tripartite advice and consultation with industry stakeholders on policies and programs to be implemented in accordance with the Labor Code.

Protection of Intellectual Property Rights

- The rights of a worker over intellectual property, consisting of the worker's performance on all movie and television production, shall at all times be protected and secured pursuant to the provisions of the "Intellectual Property Code of the Philippines". This clause does not hinder the worker from agreeing to transfer all intellectual property rights to the employer or principal for any work created during their relationship or engagement.

- Unless stated otherwise in their contract, the worker is entitled to additional payment, as outlined in Section 206 of the "Intellectual Property Code of the Philippines" for each use or broadcast of their performance or intellectual property.

- The new provisions of the Eddie Garcia Law mark a significant step forward in ensuring the safety and well-being of workers in the entertainment industry. By mandating stricter safety protocols, improving health protections, and providing greater accountability for employers, the law stands as a testament to the industry's commitment to protecting its workforce. These provisions not only honor the legacy of Eddie Garcia but also pave the way for a more secure and equitable environment for future generations of actors, crew members, and all those who contribute to the entertainment world. As the law continues to evolve, it is crucial for both employers and workers to stay informed and engaged, ensuring that its full potential is realized for the benefit of all.